
Operational Policy

Policy title:	Media Protection and Disposal Policy		
Policy number:	ODHSOHA 090-011		
Original date:	07/12/2021	Last update:	11/01/2025
Approved:	Kris Kautz, OHA Seth Lyon, ODHS		

Purpose

The Oregon Department of Human Services (ODHS) and Oregon Health Authority (OHA) are committed to protecting agency data in all forms and formats from being lost or misused. Improper disposal of digital and physical media containing protected information increases the risk for data loss or compromise. Implementation and maintenance of security measures is necessary to protect digital and physical media.

Description

This policy establishes the requirements for the protection, disposal, sanitization, and destruction of ODHS and OHA information stored on digital or physical media to prevent unauthorized access to agency data.

Applicability

This policy applies to all ODHS and OHA staff including employees, volunteers, trainees and interns as well as contractors and partners.

As keepers of the public trust, all agency employees have a responsibility to comply with state and agency policies, administrative rule, and state and federal law. The agency takes this responsibility seriously and failure to fulfill this responsibility is not treated lightly. Employees who fail to comply with state or agency policy, administrative rule, or state and federal law may face progressive discipline, up to and including dismissal from state service.

Policy

1. Digital media includes any form of electronic media designed to store data in a digital format. This includes but is not limited to digital media in laptops, computers, and mobile devices, and any removable, transportable electronic media, such as magnetic tape or disk, optical disk, flash drives, external hard drives, or digital memory cards.¹

¹ Criminal Justice Information Services (CJIS) Security Policy, Version 6.0, Appendix A, Terms and Definitions

2. Physical media includes, but is not limited to, printed documents, printed imagery, and printed facsimile.²
3. ODHS and OHA staff shall ensure digital and physical media used to process, store, or transmit protected information is securely stored within physically secure locations or controlled areas,³ with access restricted to authorized staff. Protected information includes, but is not limited to:
 - a. Personally identifiable information (PII).
 - b. Protected health information (PHI)
 - c. Federal tax information (FTI).
 - d. Criminal Justice Information (CJI).
 - e. Social Security Administration (SSA) information.
 - f. Payment Card Industry (PCI) information.
 - g. Data covered by Title 42 Code of Federal Regulations (CFR) Part 2 (Confidentiality of Substance Use Disorder Patient Records).
4. Transporting media containing protected information shall be:
 - a. Restricted to authorized staff who have been appropriately vetted and trained.
 - b. Only when necessary to limit risk of loss or theft.
 - c. Protected and secured when the media is transported outside of controlled areas; and
 - d. Documented when transporting media for disposal, including:
 - A. What media was transported.
 - B. The method of transportation.
 - C. The date and time the media was collected.
 - D. The names of authorized individuals who handled the media at each stage of transport and disposal.
 - E. The date, time and location where the media was received at the end of transport.
 - e. Documentation shall be stored in an agreed upon location.⁴
5. Digital and physical media containing CJI shall be marked indicating the distribution limitations, handling caveats, and applicable security markings of the information, if any.
6. Digital and physical media containing CJI that remains within physically secure locations or agency-controlled areas does not require marking. Controlled areas are spaces that provide physical and procedural controls to meet the requirements established for protecting information and systems.⁵
7. ODHS and OHA staff shall restrict the use of digital and non-digital media on agency owned systems that have been approved for use in the storage, processing, or transmission of CJI by using technical, physical, or administrative controls. (Refer to ODHSOHA 090-009 Administrative, Technical and Physical Safeguards of Information Policy)
 - a. The use of personally owned digital media devices on agency-owned or controlled systems that store, process, or transmit CJI is prohibited.⁶

² CJIS Security Policy, Version 6.0, Appendix A, Terms and Definitions

³ National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53 Revision 5, Media Protection (MP)-4

⁴ NIST SP 800-53 Revision 5, MP-5 Media Transport; MP-6 Media Sanitization

⁵ NIST SP 800-53 Rev. 5, MP-4 Media Storage

⁶ NIST SP 800-53 Rev. 5, MP-7 Media Use

- b. The use of digital devices on all agency-owned or controlled systems that store, process, or transmit CJI is prohibited when such devices do not have an identifiable owner.⁷
- 8. Digital media containing protected information shall be sanitized using defined sanitization techniques⁸ in accordance with state and federal requirements prior to reuse, disposal, or release from the agency's control.
 - a. Sanitization is defined as overwriting at least three times or degaussing digital media prior to disposal or release for reuse by unauthorized individuals.
 - b. Sanitization mechanisms shall be employed with the strength and integrity equal to the security category or classification of the information.
 - c. Verification of the sanitization process is required.
- 9. Physical media containing protected information shall be disposed of according to the ODHSOHA 090-011-01 Media Disposal Process.
- 10. ODHS and OHA staff working remotely shall comply with the agency's human resources remote work requirements and follow privacy and security policies to protect agency information.
 - a. Managers shall direct staff to ensure the appropriate level of security for protecting agency information and equipment in transit or at the alternate worksite.
 - b. Staff shall have manager approval to have an authorized ODHS and OHA provided printer at an alternate worksite, if printing is required. Approval includes an assessment of the data to be printed.⁹
 - c. Staff shall secure printed documents containing protected information in locked drawers or bins until they can be returned to the office for shredding or other secure disposal.
- 11. ODHS and OHA staff shall maintain records documenting all digital media disposal activities in compliance with the ODHSOHA 010-018 Records Retention and Management Policy and litigation hold requirements. Documentation shall include:
 - a. Information about the media (type, serial number, other unique identifiers).
 - b. Date of media disposal.
 - c. Persons performing the disposal activity.
 - d. Method used to render all data unusable, such as the software tool used or physical destruction of the media.
 - e. Signature of the person responsible for ensuring that all data on the storage media has been rendered unusable.

References

[42 CFR Part 2 Confidentiality of Substance Use Disorder Patient Records](#)
[45 CFR 160.103 Public Welfare General Administrative Requirements: Definitions](#)
[45 CFR 164.310 Physical Safeguards](#)
[ORS 279 Public Contracting](#) and [279A Public Contracting](#)
[OAR 166-005 Archives](#)
[OAR 166-030 Archives and Record Retention](#)

⁷ CJIS Security Policy MP-7 Media Use

⁸ NIST SP 800-88 Revision 1 Guidelines for Media Sanitization

⁹ Department of Administrative Services 08/13/2020 Memo: Use of Personal Devices and Statewide Policy 50.505.01

[DAS Electronic Waste \(E-Waste\) Overview-Information about E-Waste Recycling, Destruction, and Re-Use](#)
[DAS E-Waste Guidelines](#)
[DAS 107-011-050 PR Sustainable Acquisition and Disposal of Electronic Equipment \(e-waste/recovery\)](#)
[DAS Employees Working Remotely Guidelines](#)
[DAS Memorandum: Use of Personal Devices and Statewide Policy 50.050.01](#)
[ODHSOHA 090-011-01 Media Disposal Process](#)
[ODHSOHA 090-011-02 Media Disposal Process Map-Criminal Justice Information \(CJI\)](#)
[ODHSOHA 090-011-03 Media Disposal Process Map-Federal Tax Information \(FTI\)](#)
[ODHSOHA 090-011-04 Media Disposal Process Map-Protected Information](#)
[Federal Bureau of Investigation \(FBI\) Criminal Justice Information Services \(CJIS\) Security Policy](#)
[FBI CJIS Security and Management Control Outsourcing Standard for Non-Channelers](#)
[Federal Information Processing Standards Publication \(FIPS\) 199 Standards for Security Categorization of Federal Information and Information Systems](#)
[Internal Revenue Service Publication 1075, Tax Information Security Guidelines for Federal, State and Local Agencies](#)
[Acceptable Risk Controls for Affordable Care Act \(ACA\) Medicaid Partner Entities \(ARCAMP\)](#)
[National Security Agency \(NSA\)|Central Security Service \(CSS\) Media Destruction Guidance](#)
[National Institute of Standards and Technology \(NIST\) SP 800-53 Rev. 5, Security and Privacy Controls for Federal Information Systems and Organizations](#)
[NIST SP 800-60 Volume II, Rev. 1: Appendices to Guide for Mapping Types of Information and Information Systems to Security Categories](#)
[NIST SP 800-88, Rev. 1 Guidelines for Media Sanitization](#)
[Payment Card Industry Security Standards Council](#)
[Social Security Administration Information Exchange Security Requirements and Procedures](#)
[Statewide Information Technology Control Standards](#)
[OHA 010-023 Flexible Work Solutions](#)
[OHA 010-023-01 Flexible Work Solutions Guidelines](#)

Related policies

[DAS 50.050.01 Working Remotely](#)
[DAS 107-001-020 Public Records Management](#)
[DAS 107-004-050 Information Asset Classification](#)
[DAS 107-004-051 Controlling Portable and Removable Storage Devices](#)
[DAS 107-004-100 Transporting Information Assets](#)
[DAS 107-004-110 Acceptable Use of State Information Assets](#)
[OHA 010-018 Policy on Records Retention and Management Structure](#)
[ODHSOHA 010-018 Records Retention and Management Policy](#)
[ODHSOHA 070-014 Information Technology Asset Management Policy](#)
[ODHSOHA 090-009 Administrative, Technical and Physical Safeguards of Information Policy](#)

This policy shall be reviewed at least annually and following any security incidents involving digital or non-digital media.

Contact

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Policy history

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Version 3 ODHSOHA revised 10/02/2023
Version 4 ODHSOHA revised 11/01/2025

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